

Court No. - 36

Case :- WRIT - C No. - 15738 of 2011

Petitioner :- Smt.Suman Lata

Respondent :- State Of U.P. & Others

Petitioner Counsel :- N.K.Mishra

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Rajesh Chandra,J.

On prayer made by Sri Rajesh Tripathi, learned counsel for the respondent nos. 2 & 3, the case is directed to be put-up as fresh on 31.03.2011 so as to enable him to obtain instructions in the matter.

Order Date :- 15.3.2011

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Court No. - 36

Case :- WRIT - C No. - 15738 of 2011

Petitioner :- Smt.Suman Lata

Respondent :- State Of U.P. & Others

Petitioner Counsel :- N.K.Mishra

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Rajesh Chandra,J.

On prayer made by Sri R.K.Pandey holding brief of Sri Rajesh Tripathi, learned counsel for the respondent nos. 2 and 3, the case is directed to be put-up as fresh on 11.4.2011, so as to enable Sri Rajesh Tripathi to do the needful as mentioned in the order dated 15.3.2011.

Order Date :- 31.3.2011

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Court No. - 36

Case :- WRIT - C No. - 15738 of 2011

Petitioner :- Smt.Suman Lata

Respondent :- State Of U.P. & Others

Petitioner Counsel :- N.K.Mishra

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Satya Poot Mehrotra,J.

Hon'ble S.C. Agarwal,J.

On prayer made by Shri Rajesh Tripathi, learned counsel for the petitioner, the case is directed to be put up as fresh on 26.4.2011 so as to enable him to do the needful, as mentioned in the order dated 15.3.2011 read with the order dated 31.3.2011.

Order Date :- 11.4.2011

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Court No. - 36

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Petitioner :- Smt.Suman Lata

Respondent :- State Of U.P. & Others

Petitioner Counsel :- N.K.Mishra

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Rajesh Chandra,J.

It is submitted by Sri N.K.Mishra, learned counsel for the petitioner that the Demand Notice on the basis of the Assessment made on account of the alleged theft has been issued to the petitioner without complying with the Mandatory Requirements laid in the U.P. Electricity Supply Code, 2005.

By the orders dated 15.3.2011,31.3.2011 and 11.4.2011, time was granted to Sri Rajesh Tripathi, learned counsel for the respondent nos. 2 and 3 for obtaining instructions in the matter.

Sri Rajesh Tripathi, learned counsel for the respondent nos. 2 and 3 states that the instructions have not been received in the matter.

Issue notice pending admission.

Notice on behalf of the respondent no.1 has been accepted by the learned Standing Counsel.

Notice on behalf of the respondent nos . 2 and 3 has been accepted by Sri Rajesh Tripathi, learned counsel for the said respondents.

Counter Affidavits on behalf of the respondents may be filed within six weeks.

Rejoinder Affidavit may be filed by the next date fixed in the matter.

List this case on 13.7.2011 before the appropriate Bench.

Heard on the question of grant of interim relief.

Having regard to the facts and circumstances of the case and having considered the submissions made by the learned counsel for the parties, it is provided that till the next date fixed in the

matter, recovery proceedings against the petitioner pursuant to the Demand Notice dated 28.2.2011 (Annexure No. 6 to the Writ Petition) will remain stayed provided within four weeks from today, the petitioner deposits an amount of Rs. 50,000/- with the respondent no.2.

The amount so deposited by the petitioner will be without prejudice to the rights and contentions of the parties involved in the present Writ Petition.

In the event of default on the part of the petitioner in making the deposit, as directed above, this interim order will stand automatically vacated.

Order Date :- 26.4.2011

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Court No. - 36

Case :- WRIT - C No. - 15738 of 2011

Petitioner :- Smt.Suman Lata

Respondent :- State Of U.P. & Others

Petitioner Counsel :- N.K.Mishra

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Yatindra Singh,J.

Hon'ble Kashi Nath Pandey,J.

List is revised. No one is present on behalf of the petitioner. The writ petition is dismissed for default.

Order Date :- 20.7.2011

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